

**Misc. Application No.48/2025
Alongwith Misc. Application No. 32/2026
In Execution Application No. 40/2021
IN GC No. 1468/2019UR**

**1. MANINDER KAUR
2. ROOP SINGH**

VS.

PREETT LAND PROMOTERS AND DEVELOPERS PVT. LTD.

The present matter involves two miscellaneous applications arising out of the execution proceedings. Misc. Application No. 48 of 2025 has been filed by the respondent/promoter seeking directions to the concerned Tehsildar, S.A.S. Nagar, to de-attach the property of the respondent, which was attached vide Rapat No. 39 dated 09.10.2023 in compliance with the execution orders passed in the present case, on the ground that the parties had arrived at an amicable settlement on 09.07.2025.

On the other hand, Misc. Application No. 32 of 2026 has been filed by the Decree Holder/Complainant seeking revival of Execution Application No. 40 of 2021, contending that although the matter was amicably settled between the parties, the respondent/promoter failed to honour the terms of the settlement. It has been averred that out of the ten post-dated cheques issued by the respondent/promoter pursuant to the settlement, eight cheques have been dishonoured and the remaining two cheques have not yet been presented for encashment. It is, therefore, prayed that since the settlement has not been complied with, the execution proceedings be revived and continued in accordance with law.

The matter has been considered. It is observed that in compliance of the aforesaid order, Recovery Certificate vide Memo No. 8848 dated 07.09.2022 had already been issued by this Authority under Section 40(1) of the Real Estate (Regulation and Development) Act, 2016 and forwarded to the Deputy Commissioner-cum-District Collector, SAS Nagar (Mohali), Punjab for recovery of the outstanding amount as arrears of land revenue in accordance with law.

It is pertinent to note that upon issuance and transmission of the recovery certificate by this Bench of Authority, the process of execution and recovery thereafter falls within the statutory domain and competence of the concerned District Collector/Competent Revenue Authorities under the

applicable revenue laws. This Authority, having already exercised its jurisdiction under Section 40 of the RERD Act, 2016 is not vested with any further execution mechanism at this stage of the proceedings.

In view of the above, no further directions are required to be passed by this Authority in both the miscellaneous applications. Accordingly, applications filed by the Respondent/Promoter & Decree Holder/Complainant are taken on record and disposed of as being devoid of any further action by this Authority at present. However, both the parties shall be at liberty to pursue the recovery proceedings before the District Collector/Competent Revenue Authorities in accordance with law.

A copy of Recovery Certificate be given to both the parties. File be consigned to record room.


(Arunvir Vashista)
Member, RERA, Punjab


(Binod Kumar Singh)
Member, RERA, Punjab


(Rakesh Kumar Goyal)
Chairman, RERA, Punjab
Dated: 06.07.2026